



INDIAN LAW & DEALMAKING · 13 AUGUST 2026

Five moves shaping the board now.

- › NCLT holds IBC amendment prospective
- › SAT questions SEBI restraint on ZEEL
- › Supreme Court upholds post-award Section 9
- › LEAP India sets mainboard IPO allotment
- › Supreme Court reserves PMLA bail verdict

SWIPE →



IBC security interest amendment rules prospective

On 12 Aug 2026, NCLT Mumbai ruled in Sane Guruji Premises Co-operative Society Ltd v ARCK Resolution Professional LLP that the 2026 IBC amendment excluding security interests created by operation of law operates prospectively from 26 May 2026. The tribunal reasoned that the statutory change substantively narrows the pre-amendment definition rather than merely clarifying it.

THE READ

Creditors must treat statutory security interests created before May 2026 under the unamended framework without retroactive disruption. This ruling prevents widespread reopening of finalized resolution frameworks and safeguards prior classification rights.



SAT questions rational basis of SEBI restraint on ZEEL

On 12 Aug 2026, the Securities Appellate Tribunal reserved interim relief in Zee Entertainment Enterprises Ltd and Punit Goenka v SEBI, challenging a two-month securities market access bar involving a 3,143 crore preferential warrant fundraise. The tribunal sharply questioned what material operational changes could realistically occur after the 60-day window closes.

THE READ

A favorable interim ruling will instantly unblock ZEEL from executing its capital raise during the restriction period. Corporate strategists should watch for judicial pushback against open-ended interim regulatory bars that lack immediate evidentiary backing.



Supreme Court restricts post-award Section 9 relief for debtors

On 12 Aug 2026, the Supreme Court dismissed National Projects Construction Corporation Ltd v Ishvakoo India Pvt Ltd, upholding post-award Section 9 protection for an unsuccessful party involving a 3.5 crore dispute. The bench held such relief remains strictly confined to rare and compelling cases to prevent irreparable prejudice and directed a four-week deposit.

THE READ

Unsuccessful arbitration parties face a remarkably high threshold to secure interim protection against bank guarantee encashment during Section 34 challenges. Practitioners must demonstrate immediate, exceptional prejudice rather than ordinary commercial hardship to invoke this residual jurisdiction.



LEAP India completes mainboard IPO allotment and listing

On 12 Aug 2026, the basis of allotment was finalized for LEAP India Ltd following its 2,480 crore mainboard IPO that closed on 11 August, with shares slated for credit on 13 August and listing on 14 August. The public issue comprised a 480 crore fresh issue alongside a massive 2,000 crore offer for sale by selling shareholders including Vertical Holdings II Pte Ltd.

THE READ

This successful KKR-backed exit demonstrates robust public market liquidity for logistics infrastructure platforms despite broader valuation selectivity. Sponsors can proceed with confidence on scheduled listing timelines if subscription metrics clear institutional hurdles.



Supreme Court reserves judgment in 6,210 crore PMLA bail plea

On 12 Aug 2026, the Supreme Court reserved its verdict on the bail plea filed by Concast Steel and Power CMD Sanjay Kumar Sureka against the Calcutta High Court refusal under Section 45 twin conditions. The underlying enforcement proceedings relate to a massive 6,210 crore bank fraud and money laundering case handled by the Directorate of Enforcement.

THE READ

A definitive apex court ruling will clarify the practical application of stringent PMLA twin conditions in massive economic fraud prosecutions. Defense counsels should align bail strategies with strict temporal thresholds established for prolonged incarceration without trial.



THE THROUGH-LINE

Across insolvency, arbitration, securities, and criminal enforcement, tribunals this week are vigorously tightening procedural boundaries to curb retrospective disruption. Whether limiting statutory amendments, restricting post-award remedies, or interrogating regulatory bars, judicial bodies are demanding exceptional thresholds for intervention. This unified insistence on legal certainty protects commercial finality while raising the bar for tactical litigation.





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